

FL-25-003281 MARTINEZ VS MARTINEZ

County: stanislaus

Division: Family Law

Department: 13

Hearing date: 2026-07-09

Motion: Petitioner's Request for Order re Child Custody, etc.—HEARING REQUIRED. The child custody and visitation modification request was set for mediation and the date of mediation has been rescheduled pursuant to the parties' Stipulation and Order of June 25, 2026. Accordingly, that matter is not included in this hearing and the Court does not intend to entertain argument or evidence about it until following completion of mediation absent exigent circumstances. The requests for need-based spousal support, child support and attorney's fees and costs are not eligible for tentative ruling and require a hearing. The Court granted temporary emergency orders with respect to the personal property requests and, absent an issue with compliance or otherwise, it is anticipated that they are resolved and/or moot. Regarding property control, based on the Responsive Declaration filed by Respondent, it appears that escrow is scheduled to close as to the subject residence on Monday, July 13, 2026. Accordingly, the Court anticipates that this request is either presently moot and/or withdrawn by Petitioner. This leaves only Petitioner's request for conduct-based sanctions pursuant to Family Code section 271. Respondent disputes the factual basis for the alleged misconduct, which would ordinarily require the Court to make findings, but given that the only conduct targeted by Petitioner is Respondent's alleged retention of Petitioner's personal property, that Petitioner concedes Respondent's counsel met and conferred in good faith on these matters, and that the amount sought is \$1,000.00, the Court is inclined to deny this request without prejudice and to reserve jurisdiction over the question of conduct-based sanctions as to both parties until trial or at least until the presently highly disputed matters have been resolved. (See, i.e., Marriage of Freeman (2005) 132 Cal.App.4th 1, 6 [section 271 "contemplates that sanctions may be assessed at the end of the lawsuit, when the extent and severity of the party's bad conduct can be judged," cit. omit.]; Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 14-A, § 14:265b.)

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